

SENATE No. 1745

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to lawfully owed DNA.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>

SENATE No. 1745

By Mr. Moore, a petition (accompanied by bill, Senate, No. 1745) of Michael O. Moore, James B. Eldridge and James K. Hawkins for legislation relative to lawfully owed DNA. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1554 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to lawfully owed DNA.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The crime laboratory within the department of state police shall conduct an audit of
2 offender DNA profiles included on the state DNA databank system in order to identify the
3 number of DNA profiles missing from the databank which should have been collected pursuant
4 to section 3 of chapter 22E of the General Laws. The crime laboratory shall support this effort as
5 necessary to comply with reporting deadlines.

6 The audit shall initiate with offender DNA samples required to be collected under section
7 3 of chapter 22E and shall include those offenders who would have been covered under
8 retroactive provisions of the law that require DNA samples from persons, regardless of
9 conviction date, as provided by the statute.

10 A preliminary report, including the overall number of estimated missing DNA samples
11 shall be filed with the legislature no later than December 15, 2025 or within 90 days of the
12 enactment of this section.

13 A final report shall include additional details, including but not limited to, types of
14 offenses for which DNA samples are owed and an overview of where collection failures
15 occurred. The final report shall be submitted no later than December 15, 2026. Thereafter, an
16 annual audit shall be completed and reported to the clerks of the senate and house of
17 representatives no later than December 15 of each year.